

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1007

By: Olsen

AS INTRODUCED

An Act relating to elections; declaring that an identification issued by an educational institution is not valid proof of identity to register to vote; amending 26 O.S. 2021, Section 7-114, which relates to proof of identity for voting; clarifying that an identification issued by an educational institution is not valid proof of identity to vote; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 4-109.5 of Title 26, unless there is created a duplication in numbering, reads as follows:

An identification card issued by a school, university, or other educational institution does not constitute valid proof of identity for purposes of registering to vote in the State of Oklahoma.

SECTION 2. AMENDATORY 26 O.S. 2021, Section 7-114, is amended to read as follows:

Section 7-114. A. Each person appearing to vote shall announce that person's name to the judge of the precinct and shall provide proof of identity, whereupon the judge shall determine whether the

1 person's name is in the precinct registry. As used in this section,
2 "proof of identity" shall mean a document that satisfies all of the
3 following:

4 1. The document shows the name of the person to whom the
5 document was issued, and the name substantially conforms to the name
6 in the precinct registry;

7 2. The document shows a photograph of the person to whom the
8 document was issued;

9 3. The document includes an expiration date, which is after the
10 date of the election in which the person is appearing to vote. The
11 provisions of this paragraph shall not apply to:

12 a. an identification card that is valid indefinitely, or

13 b. an identification card issued by a branch of the armed
14 services of the United States to a person who is a
15 member of such branch or is retired therefrom; ~~and~~

16 4. The document was issued by the United States, the State of
17 Oklahoma or the government of a federally recognized Indian tribe or
18 nation; and

19 5. An identification card issued by a school, university, or
20 other educational institution does not constitute valid proof of
21 identity.

22 Provided, if the person presents a voter identification card
23 issued by the appropriate county election board, such card may serve
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1 as proof of identity without meeting the requirements of paragraphs
2 2 and 3 of this subsection.

3 B. 1. If a person declines to or is unable to produce proof of
4 identity, the person may sign a statement under oath, in a form
5 approved by the Secretary of the State Election Board, swearing or
6 affirming that the person is the person identified on the precinct
7 registry, and shall be allowed to cast a provisional ballot in a
8 manner consistent with the provisions of Section 7-116.1 of this
9 title.

10 2. A provisional ballot cast by a voter who declines or is
11 unable to produce proof of identity shall only be considered
12 verified and approved for counting if:

- 13 a. the voter's name on the affidavit substantially
14 conforms to the voter's name in the voter registration
15 database, except as provided in paragraph 3 of this
16 subsection,
- 17 b. the voter's residence address on the affidavit
18 substantially conforms to the voter's residence
19 address in the voter registration database, except as
20 provided in paragraph 4 of this subsection,
- 21 c. the voter's date of birth matches the information in
22 the voter registration database,
- 23 d. the voter's Oklahoma driver license number or the last
24 four digits of the voter's Social Security number on
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1 the affidavit matches the information in the voter
2 registration database. The provisions of this
3 subparagraph shall not apply if the voter was not
4 required to provide a driver license number or the
5 last four digits of the voter's Social Security number
6 at the time of registration, and

7 e. the provisional ballot meets the eligibility
8 requirements set forth in Section 7-116.1 of this
9 title.

10 3. A voter casting a provisional ballot as provided in this
11 section who has legally changed his or her name, but has not updated
12 the name on the voter registry, may note this fact on the affidavit
13 and submit a form prescribed by the Secretary of the State Election
14 Board to update his or her name. In such a case, and where the
15 requirements of Section 4-117 of this title are satisfied, the
16 provisional ballot shall be deemed to meet the requirements of
17 subparagraph a of paragraph 2 of this subsection.

18 4. A voter casting a provisional ballot as provided in this
19 section who has changed his or her address of residence, but has not
20 updated the address on the voter registry, may note this fact on the
21 affidavit and submit a form to update the address prescribed by the
22 Secretary of the State Election Board. In such a case, and where
23 the requirements of Section 4-117 of this title are satisfied, the
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1 provisional ballot shall be deemed to meet the requirements of
2 subparagraph a of paragraph 2 of this subsection.

3 5. False swearing or affirming under oath shall be punishable
4 as a felony as provided in Section 16-103 of this title, and the
5 penalty shall be distinctly set forth on the face of the statement.

6 SECTION 3. This act shall become effective November 1, 2025.
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